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Case Number: 24STCV32461 Hearing Date: August 4, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

PAUL AIGBOGUN,

Plaintiff,

vs.

ALTO OPERATIONS CALIFORNIA,

LLC,

Defendant.

Case No.:

24STCV32461

Hearing Date:

August 4, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT ALTO OPERATIONS CALIFORNIA, LLC'S MOTION TO DISMISS, OR IN
THE ALTERNATIVE, FOR TERMINATING SANCTION

Background

Plaintiff Paul

Aigbogun ("Plaintiff") filed this action against Defendant Alto Operations California, LLC ("Defendant") on December 10, 2024, alleging twelve causes of action for (1) national origin discrimination in violation of FEHA, (2) harassment based on national origin in violation of FEHA, (3) retaliation in violation of FEHA, (4) hostile work environment in violation of FEHA, (5) failure to pay overtime wages in violation of Labor Codes §§ 510 and 1194, (6) failure to provide meal and rest breaks in violation of Labor Codes §§ 226.7 and 512, (7) unlawful deduction of wages in violation of Labor Codes §§ 221, 226, and 203, (8) invasion of privacy (misappropriation of likeness), (9) false light (invasion of privacy), (10) constructive discharge in violation of public policy, (11) intentional infliction of emotional distress, and (12) failure to prevent discrimination, harassment, retaliation and hostile work environment in violation of FEHA.

Trial is currently set for September 9, 2026,
but formerly was set for August 5, 2026.

Defendant now moves to dismiss the
action or, alternatively, for terminating sanctions. Plaintiff opposes. Defendant replied.

Legal Standard

Under Code of Civil Procedure section 583.410,
subdivision (a), "[t]he court may in its discretion dismiss an action for
delay in prosecution pursuant to this article on its own motion or on motion of
the defendant if to do so appears to the court appropriate under the
circumstances of the case." In ruling on a motion to dismiss for delay in
prosecution, "the court must consider all matters relevant to a proper

determination of the motion, including:

- (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;
- (2) The diligence in seeking to effect service of process;
- (3) The extent to which the parties engaged in any settlement negotiations or discussions;
- (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;
- (5) The nature and complexity of the case;
- (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;
- (7) The nature of any extensions of time or other delay attributable to either party;
- (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;
- (9) Whether the interests of justice are best served by dismissal or trial of the case; and
- (10) Any other fact or circumstance relevant to a fair determination of the issue.

The court must be guided by the policies set forth in Code of Civil Procedure section 583.130." ((Cal. Rules of Court, rule 3.1342(e).) Code of Civil Procedure section 583.130 provides that

"[i]t is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise

provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter.”

Regarding sanctions, “[d]isobeying a court order to provide discovery,” “[f]ailing to respond or to submit to an authorized method of discovery,” “[m]aking, without substantial justification, an unmeritorious objection to discovery,” and “[m]aking an evasive response to discovery” are all misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d)-(g).) There is a broad range of sanctions available against anyone engaging in conduct that is a misuse of the discovery process, including the issuance of monetary, evidentiary, contempt, and terminating sanctions. (Code Civ. Proc., § 2023.030.) “The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party.” (Code Civ. Proc., § 2023.030, subd. (d).)

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’” (Doppes v. Bentley Motors, Inc., supra, at page 992.) A terminating sanction is a “drastic measure which should be employed with caution.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 793.) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

Additionally, Code of Civil Procedure section 575.2, subdivision (a), specifically provides that “[l]ocal rules promulgated pursuant to Section 575.1 may provide that if any counsel, a party represented by counsel, or a party if in pro se, fails to comply with any of the requirements thereof, the court on motion of a party or on its own motion may strike out all or any part of any pleading of that party, or, dismiss the action or proceeding or any part thereof, or enter a judgment by default against that party, or impose other penalties of a lesser nature as otherwise provided by law.” Regarding the procedure for mediation, “[p]arties who fail to follow cancellation procedures risk the issuance of an Order to Show Cause and sanctions pursuant to California Rules of Court, rule 3.1385(a).” (General Order, In Re Mediation Volunteer Panel, § 1.7.)

Discussion

Defendant asserts that “Plaintiff has taken virtually no steps to prosecute the case. Instead, Plaintiff has repeatedly failed to comply with Court orders, refused to engage in attorney communications or trial preparation and disrupted Defendant’s ability to litigate the matter. Plaintiff’s pattern of noncompliance and obstruction warrants dismissal of this action.” (Mot., 1:3-6.) Defendant makes this motion “pursuant to Code of Civil Procedure sections 177.5, 575.2, 583.150, 583.410, 2023.010, 2032.310 and 2032.320; California Rules of Court, rules 2.30, 3.1340, and 3.1342; the Court’s inherent authority to control its proceedings, enforce its orders, and protect the integrity of the judicial process; and such other authority as the Court deems applicable.” (Notice of Mot., 3:3-6.)

A.

Background

A review of the history presented by Defendant’s counsel is as follows: at the Informal Discovery Conference held on March 3, 2026, the “parties have agreed to attend the [Mediation Volunteer Panel (MVP)] Program and the Court so orders,” inter alia, that “[r]egardless of the method of mediator selection, the plaintiff or plaintiff’s counsel must submit an online Response within 15 calendar days of the date on the Notice” of Referral to Mediation and that “[t]he mediation shall be completed by 06/30/26.” (Xie Decl., ¶ 4, Ex. A.) Thereafter, Defendant’s counsel “repeatedly contacted Plaintiff’s counsel requesting initiation of the MVP process and the scheduling of mediation,” but

“Plaintiff’s counsel ignored each of these communications,” so “[t]o preserve the Court-ordered deadline for completion of the MVP process and to avoid jeopardizing the Court’s June 30, 2026 mediation deadline, Defendant was forced to initiate the MVP process due to Plaintiff’s inaction.” (Xie Decl., ¶ 5, Ex. B [emphasis omitted].) Defendant’s counsel further explains that “Plaintiff thereafter refused to provide any availability for mediation before the Court-ordered June 30, 2026 deadline, citing unavailability. After months of efforts by Defendant, and despite Plaintiff’s continued failure to respond to communications from both Defendant and the mediator’s office, the parties were ultimately able to schedule mediation for June 10, 2026 - the only date Plaintiff represented that he would be available. The mediation date was confirmed in writing on June 5, 2026, only three business days before the scheduled session. Plaintiff’s counsel expressly confirmed that date in writing. However, on the eve of the mediation, Plaintiff’s counsel repudiated that written confirmation and unilaterally cancelled the mediation.” (Xie Decl., ¶ 6; see Ex. C, p. 7 [“Mr. Carlin has been called to appear ‘in person’ for Arbitration June 8-10 and is currently in the midst of this Arbitration. Mr. Carlin’s associate attorney, William Welden, is out on medical leave following a broken hip. We have this matter calendared for June 25, 2026, at 12 pm with ‘Lets Settle Now’. Please clarify the above and also we are not available tomorrow.”].)

“The parties subsequently rescheduled the mediation for June 29, 2026. Defendant and I again rearranged our schedules and commitments in order to accommodate the mediation. This time, Plaintiff’s counsel appeared. However, at the outset of the session, and appeared to not know whether his client was present, Plaintiff’s lead counsel represented that his wife had been involved in an airplane crash involving ‘hundreds of people,’ that the Coast Guard was actively searching for her, and that he was awaiting further information. Based on those representations, the mediation did not proceed.” (Xie Decl., ¶ 7 [emphasis omitted].) “[T]he mediation was ultimately rescheduled for July 8, 2026, the only date Plaintiff represented he was available,” but “[o]n July 8, 2026, no one from Plaintiff’s side appeared for the rescheduled mediation. Plaintiff’s side also ignored communications from the mediator’s office.” (Xie Decl., ¶¶ 7, 10.) “On the same day, a paralegal from Plaintiff’s counsel’s office emailed both me and the mediator’s office, stating that they were unaware the mediation had been scheduled for that date and attributing the issue to the unavailability of a calendaring clerk. This explanation was particularly surprising given that Plaintiff’s counsel had personally requested and agreed to that very date only five business days earlier. The paralegal

then requested that the mediation be rescheduled for August 3, 2026 - just two days before the currently scheduled trial date.” (Xie Decl., ¶ 11.)

Defendant’s counsel also explains that, regarding the airplane incident, “Defendant and the mediator conducted due diligence and searched publicly available information for an airplane incident,” but could not find any information, and later “Plaintiff’s counsel admitted that his wife had not, in fact, been on an airplane.” (Xie Decl., ¶¶ 8-9.)

Defendant’s counsel also recounts Plaintiff’s failure to prosecute this case, explaining that “[s]ince filing the Complaint, Plaintiff has not taken affirmative steps to prosecute his claims. Plaintiff has not served written discovery on Defendant, has not noticed or taken any deposition, and has not served any timely expert designation on Defendant by the applicable deadline. Defendant has instead been required to initiate and pursue the litigation events necessary to move the case forward. (Xie Decl., ¶ 13.) Defendant’s counsel outlines the difficulty in scheduling Plaintiff’s deposition and that “[m]erely one hour into the deposition, Plaintiff’s counsel sought to either curtail the deposition or continue it to another date.” (Xie Decl., ¶¶ 14-15, Ex. E.) Additionally, Plaintiff “seeks emotional-distress damages and alleges mental anguish, anxiety, humiliation, reputational harm, and related injury,” so “Defendant attempted to meet and confer with Plaintiff’s counsel regarding an independent medical/mental examination (‘IME’) of Plaintiff,” but “Plaintiff’s counsel did not substantively engage or cooperate with Defendant’s efforts.” (Xie Decl., ¶ 16, Ex. F.) Lastly, Defendant’s counsel explains that “[o]n June 5, 2026, Defendant attempted to personally serve the Law Offices of Gary R. Carlin with Defendant’s Demand for Independent Mental Examination of Plaintiff Paul Aigbogun. The process server arrived at Plaintiff’s counsel’s office building; was unable to access Plaintiff’s counsel’s suite because the elevators were locked and required a key card. He called Plaintiff’s counsel’s office; advised that a messenger was delivering documents from Jackson Lewis/opposing counsel; was told the office was not expecting deliveries and would not give him access to enter the building.” (Xie Decl., ¶ 17, Ex. G.)

Plaintiff’s counsel provides his own declaration attesting to the events. Plaintiff’s counsel attests that “[a]t no time did Plaintiff or Plaintiff’s counsel intentionally disregard this Court’s orders, intentionally fail to mediate, intentionally obstruct discovery, or intentionally attempt to prejudice Defendant.” (Carlin Decl., ¶ 4.) Plaintiff’s counsel explains that “[t]his case was originally being handled in significant part by attorney

William B. Welden of my office. On or about March 12, 2026, Mr. Welden broke his hip,” and since his injury, he “has not returned to the office,” so “the matter thereafter had to be shifted to me.” (Carlin Decl., ¶¶ 8-9, Ex. B.) Counsel attests that “Mr. Welden’s sudden injury and continued absence materially affected this office’s ability to manage and transition matters he had been handling, including this case.” (Carlin Decl., ¶ 10.) Counsel further explains that “[d]uring the same general period, my office also experienced substantial staffing and calendaring disruption. At the end of 2025, our calendar clerk left the office voluntarily. Thereafter, another calendar clerk became unavailable due to pregnancy and maternity leave. These losses materially affected our office’s calendaring and case-management system.” (Carlin Decl., ¶ 11.)

Plaintiff’s counsel provides this information “to explain that the mediation and scheduling problems identified by Defendant were not intentional, willful, or strategic. They resulted from genuine personnel losses, a serious attorney injury, and internal calendaring disruption.” (Carlin Decl., ¶ 12.) Regarding the mediation where counsel left, he explains that “Plaintiff’s side appeared and that the mediation did not proceed because an emergency required my immediate attention.” (Carlin Decl., ¶ 13.) Then, “[w]ith respect to the July 8, 2026 mediation date, Plaintiff’s side did not intentionally fail to appear. The date was not properly entered into our calendaring system due to the staffing and calendaring issues described above. Once the issue was discovered, our office attempted to determine whether the mediation was proceeding and then requested that mediation be rescheduled.” (Carlin Decl., ¶ 15.)

Plaintiff’s counsel also explains that “Plaintiff has participated in discovery in this matter. On or about September 19, 2025, Plaintiff served responses to Defendant’s discovery requests.” (Carlin Decl., ¶ 6, Ex A.) Plaintiff’s counsel also states that “Plaintiff also appeared for his deposition in this matter. Defendant had the opportunity to examine Plaintiff regarding his employment, claims, allegations, damages, and other issues in the case. Plaintiff did not refuse to be deposed.” (Carlin Decl., ¶ 7.) Regarding the IME, Plaintiff’s counsel explains that “[t]o my knowledge, there was no Court order compelling Plaintiff to appear for an Independent Mental Examination. Plaintiff did not intentionally violate any Court order concerning an IME,” and “[t]o the extent Defendant believed an IME was warranted, Plaintiff’s position is that Defendant could have sought appropriate relief through a noticed discovery motion.” (Carlin Decl., ¶¶ 20-21.) For access to

the building, Plaintiff's counsel explains that his "office is located in a building with controlled access. If there was a problem with access to the office or building, that issue was not intended as a refusal to participate in discovery." (Carlin Decl., ¶ 22.)

Plaintiff's counsel attest that "Plaintiff is willing to immediately meet and confer with Defendant regarding trial documents, including motions in limine, exhibit lists, witness lists, jury instructions, verdict forms, a joint statement of the case, and any other pretrial documents required by the Court." (Carlin Decl., ¶ 18.) Further, "[s]ince the calendaring issues arose, my office has been reviewing and correcting its calendaring procedures. We are working to ensure that court dates, mediation dates, discovery dates, and pretrial deadlines are double-checked and entered into the office calendar. We are also reviewing active cases to ensure that no similar issue occurs again." (Carlin Decl., ¶ 23.) Lastly, Plaintiff's counsel attests that "[d]ismissal would punish Plaintiff for counsel-side staffing, calendaring, and attorney-medical issues, despite Plaintiff's participation in discovery, Plaintiff's appearance for deposition, Plaintiff's willingness to mediate, and Plaintiff's willingness to meet and confer regarding trial preparation." (Carlin Decl., ¶ 25.)

B.

Procedural Issues

As a preliminary matter, the Court notes that Defendant brings the instant motion under multiple statutes to effectuate dismissal. Plaintiff contends that "Defendant expressly invokes Code of Civil Procedure sections 583.410 through 583.430 and California Rules of Court, rules 3.1340 and 3.1342. However, California Rules of Court, rule 3.1342(a), requires a party seeking dismissal under Code of Civil Procedure sections 583.410 through 583.430 to serve and file notice of motion at least 45 days before the hearing. Defendant did not provide 45 days' notice. Defendant filed and served its motion on July 13, 2026, for an August 4, 2026 hearing. That is not 45 days. To the extent Defendant seeks statutory discretionary dismissal for delay in prosecution, the motion should be denied on that basis alone." (Opp., 5:21-6:2.)

Defendant's reply discusses this, stating that "Defendant recognizes that the 45-day notice requirement in California Rules of Court, rule 3.1342(a), governs the statutory discretionary-dismissal route under Code of Civil Procedure sections 583.410

through 583.430. But the Motion separately and expressly sought sanctions under sections 177.5, 575.2, 2023.010 and 2023.030, and the Court's inherent authority. The 45-day rule does not erase those independent grounds. In addition, the Court has granted Defendant's Ex Parte motion to shorten such notice period." (Reply, 2:16-21.)

Defendant brought the instant motion under multiple statutory remedies, and the 45-day notice requirement only applies to Code of Civil Procedure sections 583.410-583.430. (See Cal. Rules of Court, rule 3.1342(a).) This matter also came before the Court on ex parte application. The Court did not grant a shortening of the hearing date via Defendant's ex parte; however, the Court did decide to continue the trial date to September 9, 2026. Accordingly, the Court does not reject the instant motion on procedural grounds.

C.

Dismissal and/or Terminating Sanctions

Defendant moves to dismiss this case or for terminating sanctions due to Plaintiff's failure to prosecute the case and failure to engage in mediation efforts.

Terminating

sanctions are a drastic remedy, often imposed in instances where "the record is replete with instances of delay and failure to comply with a court order." (Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, 489 [disapproved on other grounds].) "[T]he sanctioned party's history as a repeat offender is not only relevant, but also significant, in deciding whether to impose terminating sanctions." (Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1106.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

As for mediation, Defendant also asserts that "Code of Civil Procedure section 575.2 authorizes local rules to provide that failure to comply with court order may result in striking pleadings, dismissal, default, lesser penalties, and payment of reasonable expenses including attorney fees, subject to notice and opportunity to be heard. The Los Angeles

Superior Court's MVP General Order also requires Plaintiff or Plaintiff's counsel to submit the online response form within 15 calendar days of the Notice of Referral, provides that the assigned mediator will communicate mediation details, requires the entire mediation process to be completed by the judge's completion date, and makes parties and attorneys responsible for attending mediation and ensuring all persons necessary to resolve the case participate." (Mot., 10:9-16.) Defendant asserts that "the record presents a serious violation of a specific Court order and the Court's own court-connected ADR procedure. The sequence shows willfulness. Plaintiff did not initiate the MVP process despite repeated follow-up; Defendant had to initiate it. Plaintiff then refused to provide timely availability, cancelled the June 10 mediation after confirming it in writing, caused the June 29 mediation not to proceed based on an explanation later retracted in material part, again failed to appear on July 8, ignored mediator communications, and then proposed August 3, 2026 - two days before trial - while still refusing to cooperate on trial documents. This is not a single calendaring mistake. It is a pattern of refusal to comply with a Court order and with the Court's ADR procedures." (Mot., 10:19-26 [emphasis omitted].)

Plaintiff's opposition asserts "Defendant's motion attempts to portray the mediation history as intentional obstruction. The record does not support that characterization. Plaintiff's counsel's office experienced serious staffing and calendaring disruption. At the end of 2025, the office lost its calendar clerk. On or about March 12, 2026, attorney William Welden broke his hip and has not returned to the office since. Mr. Welden had been handling this matter, and the case was thereafter shifted to Mr. Carlin. A few months later, another calendar clerk became unavailable due to pregnancy and maternity leave. These facts matter. They show that the mediation and calendaring issues were not intentional misconduct. They were the result of personnel losses, a serious attorney injury, and calendaring problems during a difficult transition." (Opp., 7:2-12.) Plaintiff contends that "[t]he appropriate response to calendaring-related problems is a lesser remedy: an order to complete mediation, an order to meet and confer, monetary sanctions if appropriate, or a trial continuance if needed, not dismissal with prejudice." (Opp., 7:14-17.)

The Court recognizes that the issues identified by Plaintiff have presented significant hurdles. Namely, the IDC on March 3, 2026 outlines the parties' agreement on what mediation steps to take, and Mr. Welden's injury occurred on March 12, 2026. This, in part, explains the difficulty in complying with the mediation process. However, Mr. Welden's injury does not explain the failure to

show up to a scheduled mediation and Plaintiff's counsel's assertion that his wife had been in a plane accident, when there is no evidence of such occurrence.

Regarding Plaintiff's failure to prosecute, Defendant asserts that "[h]ere, the facts and circumstances of this case make it clear that Plaintiff has failed to prosecute his case in any meaningful fashion, and that the interests of justice are best served by dismissal of the action. Moreover, Plaintiff's delay has prejudiced Defendant and the purpose of the discretionary dismissal statute is fulfilled by dismissal of this stagnant case because of Plaintiff's lack of diligence. Plaintiff has served no written discovery, taken no deposition, and served no timely expert designation. Defendant, by contrast, noticed Plaintiff's deposition, sought documents at deposition, attempted to proceed with an IME, repeatedly attempted to move mediation forward, and attempted to meet and confer regarding pretrial documents. A plaintiff who takes no discovery, obstructs defense discovery, and refuses trial-preparation communications is not diligently prosecuting." (Mot., 7:18-26.)

Defendant also contends that "the nature and complexity of the case increases, not decreases, Plaintiff's duty of diligence. Plaintiff alleges FEHA discrimination, harassment, retaliation, constructive discharge, wage-and-hour violations, privacy claims, emotional distress, punitive damages, and injunctive relief. Those claims require witness testimony, payroll data, medical/mental evidence, expert analysis, and timely trial preparation. Plaintiff cannot assert serious and complex damages while refusing to participate in the procedures necessary to test them." (Mot., 7:27-8:3.)

Further, "[t]he law applicable to the case also favors sanctions. The Discovery Act authorizes terminating sanctions for discovery misuse. Section 2034.300 requires exclusion of expert opinions where a party unreasonably fails to comply with expert exchange obligations. Section 177.5 authorizes monetary sanctions for violation of a lawful court order. The Court's inherent power permits terminating sanctions where misconduct is deliberate and egregious and lesser sanctions cannot restore fairness." (Mot., 8:4-8.)

Moreover, Defendants assert "the interests of justice favor dismissal or strict conditional sanctions. The preference for trial on the merits does not require the Court to reward a plaintiff who prevents the merits from being tested. Plaintiff filed the action and controls his prosecution of it. The burden should not be shifted to Defendant to litigate against moving targets, missed events, withheld evidence, and unilateral pretrial preparation made

necessary by Plaintiff's refusal to participate. (Xie Decl., ¶¶ 2, 19-20.)

Plaintiff's pattern reveals strategic obstruction. Each event might be framed in isolation as a scheduling issue; taken together, they show that Plaintiff is using delay to avoid discovery and pretrial obligations while leaving serious allegations pending over Defendant." (Mot., 8:19-26.)

Lastly, Defendant asserts that "[p]ursuant to Rule of Court 3.1342(e) and Monroy, Plaintiff's failure to diligently pursue the matter weigh strongly in favor of dismissal. Plaintiff can offer no justification whatsoever for his delay in prosecuting his case. Consequently, as in Monroy and other cases cited by Defendants above, the Court should dismiss this action." (Mot., 8:27-9:2.) The Court notes that in Monroy v.

Roman Catholic Archbishop of Los Angeles (1969) 276 Cal.App.2d 492, 493, the Court of Appeal affirmed the trial court's dismissal of "plaintiff's complaint for want of prosecution because of her failure to bring her action to trial within two years." There, the court noted that the "plaintiff did nothing for more than 15 months thereafter to bring her action to trial. No reason for that delay or for her lack of diligence was shown." (Id. at p. 495.) However, the Court notes that Monroy differs from the present situation, because Plaintiff's case was filed in December of 2024; thus, Plaintiff is not within the timeframe for failure to prosecute or bring the case to trial after two years.

Plaintiff's opposition asserts that "Defendant's theory that Plaintiff has not prosecuted this case is overstated and misleading. Plaintiff served discovery responses on or about September 19, 2025. Plaintiff appeared for his deposition. Plaintiff has engaged in mediation efforts and remains willing to mediate. Plaintiff is willing to meet and confer immediately regarding pretrial documents. This is not a stale case where no trial date exists, witnesses have disappeared, and the plaintiff has abandoned the action. Trial is presently set. The case is moving toward adjudication. Any remaining issues can be addressed through targeted orders." (Opp., 6:10-17.)

Plaintiff contends that "[t]he factors under California Rules of Court, rule 3.1342(e), do not support dismissal. The Court should consider all relevant facts, including the complexity of the case, the parties' settlement efforts, discovery and pretrial proceedings, the nature of the delays, whether dismissal or trial better serves justice, and any other relevant circumstance. Those factors favor denial." (Opp., 6:17-21.)

Plaintiff further discusses why the deposition issues and IME issue do not support terminating sanctions. Regarding the deposition, Plaintiff asserts that “[d]ismissal is not an appropriate remedy where the deposition occurred and where any claimed deficiency could be cured through further examination.” (Opp., 8:12-13.) As for the IME, Plaintiff asserts that “there was no violated court order requiring Plaintiff to appear for an IME. At most, Defendant had a discovery dispute regarding whether an IME was warranted and how it should proceed.” (Opp., 8:26-9:1.) As for the purported expert designation issues, Plaintiff contends that “assuming there is an expert-designation issue, dismissal is not the remedy. The Discovery Act provides specific remedies for expert-disclosure issues, including exclusion of undisclosed expert opinions under appropriate circumstances. It does not follow that the entire complaint should be dismissed. This is especially true where Plaintiff’s claims are not solely dependent on retained expert testimony and where many damages categories may be proven through Plaintiff’s testimony, employment records, payroll records, percipient witnesses, and other non-expert evidence.” (Opp., 9:7-14.)

Plaintiff also asserts that “Defendant argues that Plaintiff prevented meaningful preparation of joint trial documents. Plaintiff disputes Defendant’s characterization and is willing to immediately meet and confer. Plaintiff is prepared to meet and confer regarding motions in limine, witness lists, exhibit lists, jury instructions, verdict forms, a joint statement of the case, and any other pretrial documents. Plaintiff is willing to do so by telephone, Zoom, email, or any method the Court orders. If the Court believes trial-preparation issues remain, the proper remedy is an order setting immediate deadlines and requiring cooperation.” (Opp., 9:19-25.)

Defendant’s reply contends that “[t]he Opposition identifies no interrogatory, document demand, request for admission, deposition notice, subpoena, or other discovery that Plaintiff served on Defendant to develop his own claims. Plaintiff did sit for a deposition, and Defendant does not contend that this fact alone supports dismissal. The point is that the deposition occurred only after months of scheduling efforts and included an on-record threat by counsel to leave and instruct Plaintiff not to answer unless Defendant agreed to a continuation.” (Reply, 3:19-25.)

Regarding the deposition, Defendant asserts that Plaintiff sitting for the deposition is not the point; rather, “[t]he point is that the deposition occurred only after months of scheduling efforts and included an on-record threat by counsel to leave and instruct Plaintiff not to answer unless

Defendant agreed to a continuation.” (Reply, 3:23-25.) As for the IME, Defendant’s point is that “Plaintiff did not substantively engage in the meet-and-confer process needed to present the issue before the discovery cutoff and actively rejected service of Demand, despite placing mental and emotional condition at issue.” (Reply, 4:4-6.) Defendant further contends that “[t]he expert issue remains undisputed. The Opposition does not attach or identify a timely expert designation. It argues only that exclusion, rather than dismissal, is the ordinary remedy. Defendant agrees that, at minimum, Code of Civil Procedure section 2034.300 should be enforced and Plaintiff should not obtain a continuance merely to cure an expired expert deadline created by his own inaction.” (Reply, 4:8-11.)

Defendant asserts that “Los Angeles Superior Court Local Rule 3.25 requires trial witness lists, premarked exhibit lists, jury instructions, and a proposed statement of the case before the Final Status Conference and warns that noncompliance may result in exclusion or loss of a jury trial. The Final Status Conference was set for July 24, 2026. Yet the Opposition, filed days before that date, does not attach completed joint documents or identify an actual substantive meet-and-confer. It offers only a new promise that Plaintiff is ‘willing’ to cooperate. Willingness after the deadline is not performance before the deadline. Defendant was forced to prepare unilaterally while trial was set for August 5.” (Reply, 4:14-21.)

The evidence provided by Defendant demonstrates failure by Plaintiff to timely proceed with various discovery and matters and mediation. Plaintiff’s opposition acknowledges some but not all of these failures but offers some explanation, including the injury of Plaintiff’s previous lead counsel on March 12, 2026; however, Plaintiff did not seek a trial continuance, other leave, or engage in further meet and confer efforts to resolve the problems. Nevertheless, as discussed below, no previous sanctions have been imposed on Plaintiff. Accordingly, the Court finds that dismissing the case or granting terminating sanctions would be too drastic given the circumstances. Thus, the relevant inquiry is what sanctions should be imposed.

D.

Sanctions for the Instant Motion

Defendant’s reply states that “[i]f the Court is not prepared to terminate the action now, it should reject the Opposition’s proposal of an unconditioned continuance, which would reward the conduct and transfer its cost to Defendant. At minimum, the Court should enter a written order that:

1. finds the March 3 mediation-completion order was not obeyed and determines whether sanctions against Plaintiff's counsel are warranted under Code of Civil Procedure sections 177.5 and 575.2;

2. enforces Code of Civil Procedure section 2034.300 against untimely expert opinions, subject to the statutory conditions and any showing the Court permits;

3. requires an immediate, substantive meet-and-confer and completed joint trial documents by a date certain, with issue, evidence, or terminating sanctions expressly noticed for any further failure;

4. if trial is continued, reopens only the discovery needed to cure Defendant's prejudice, including a properly noticed motion for mental examination, and allocates reasonable resulting fees and costs after supplemental proof and an opportunity to be heard; and

5. precludes Plaintiff from using a continuance to obtain strategic benefits from deadlines already missed without good cause.

These alternatives are not Defendant's preferred relief, but they directly address the incremental-sanctions concern while preserving meaningful consequences." (Reply, 6:20-7:4.)

Conclusion

Defendant's notice of this motion requested a dismissal with prejudice, or, in the alternative, terminating sanctions. The notice also indicated that Defendant was asking for "any further relief necessary to restore fairness and prevent Plaintiff from benefitting from his own non-prosecution and obstruction." (p. 3, ll. 8-9). The Court denies the motion to dismiss and for termination sanctions because the relief sought is too extreme and no prior court order has been violated. However, the Court does order the following relief:

Plaintiff may not submit
untimely expert opinions

pursuant to Code
of Civil Procedure section 2034.300.

Plaintiff must initiate
and engage in substantive
meet-and-confer efforts with Defendant within 10 days of this Order and take
the lead in completing and filing joint trial documents within 20 days of this
Order.

Trial may be continued if Defendant wishes to pursue a motion for mental
examination.

The parties are to participate in a mediation if still available.

Defendant is ordered to give notice of this Order.

DATED: August 4, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court